



Notification Waiver Determination

Atmos – specific BayWa r.e. renewable energy projects

Acquisition	Atmos Queensland Solar Pty Ltd and Atmos Developments Pty Ltd applied for a notification waiver in respect of their proposed acquisition of 100% of the issued shares in specific renewable project companies and associated project assets from various subsidiaries of BayWa r.e. AG including Hughenden Solar Farm HoldCo Pty Ltd, Yatpool Solar Farm HoldCo Pty Ltd and BayWa r.e. Projects Australia Pty Ltd (together referred to as BayWa r.e.), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	20 August 2026

Parties to the Acquisition	Atmos Queensland Solar Pty Ltd and Atmos Developments Pty Ltd form part of the Atmos Renewables group (collectively with its connected entities, Atmos). Atmos is a developer, owner and operator of renewable energy assets with a portfolio of utility-scale wind farms, solar farms and battery energy storage systems (BESS) spanning both operational and development-stage projects across Victoria, New South Wales, Queensland, South Australia, Tasmania and Western Australia. Atmos is owned by a consortium of institutional investors, with the investment managed by Igneo Infrastructure Partners (Igneo). Igneo forms part of First Sentier Investors, a global infrastructure investment platform and the majority shareholder of Atmos. First Sentier Investors invests in and manages infrastructure assets across the energy, transport, digital and social infrastructure sectors. BayWa r.e. AG is a German-headquartered international renewable energy developer that owns and operates renewable energy projects across 34 countries worldwide. BayWa r.e. AG is ultimately owned by BayWa AG and Energy Infrastructure Partners, a Swiss infrastructure investment manager focused on energy transition investments. In Australia, BayWa r.e. develops, constructs and manages utility-scale renewable energy projects across the National Electricity Market, including wind farms, solar farms and BESS, as well as providing associated asset management and operational services. Post-acquisition, Atmos will become the owner and operator of the following operational, near-term development and proposed renewable energy projects: • the operational Yatpool Solar Farm in Victoria
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	- the operational Hughenden Solar Farm in Queensland - the near-term Bullawah Wind Farm project (Stages 1 and 2) in New South Wales - a portfolio of early-stage pipeline wind farm, solar farm and BESS projects across Victoria, New South Wales and Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - the parties' combined shares in wholesale electricity generation and supply in the National Electricity Market in Victoria, New South Wales, Queensland, and nationally, are estimated to be low and the increase in share of supply arising from the Acquisition is expected to be small - there are alternative suppliers of wholesale electricity generation to the National Electricity Market in Victoria, New South Wales, Queensland, and nationally. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act